

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

ORDER NO. 90-051

WASTE DISCHARGE REQUIREMENTS
FOR
JOHN HOVANNISIAN
NORTH FORK MILL HOUSING FACILITY
MADERA COUNTY

The California Regional Water Quality Control Board, Central Valley Region, (hereafter Board), finds that:

1. John Hovannisian, owner, operator and lessor, (hereafter referred to as Discharger) submitted a Report of Waste Discharge for the treatment and disposal of domestic wastewater from his North Fork Mill Housing Development. This housing development consists of rental houses occupied by approximately 90 people. Waste is collected and treated in a private wastewater treatment facility. It is in Section 18, T8S, R23E, MDB&M, as shown in Attachment A, a part of this Order.
2. Waste is initially treated by individual septic tanks and effluent is conveyed to a community sump tank. Effluent is pumped periodically from the sump tank to one of four evaporation/percolation ponds. Use of ponds is rotated. During power failures, effluent gravity flows from the sump tank to a wet well and on to an emergency leachfield. The design capacity of the facility is about 8,000 gpd. *replaced by leach pit*
3. Depth to first ground water is estimated at 30 feet below ground surface. Local water quality in the North Fork area is good (EC = 470 umhos/cm). The beneficial uses of the ground water underlying this area are municipal, industrial, and agricultural supply.
4. The site is underlaid by residual soils (up to six feet below ground level) and about 30 feet of decomposed granite overlying the parent bedrock.
5. The Board, on 25 July 1975, adopted the Water Quality Control Plan for the San Joaquin Basin (5C). These requirements are consistent with that plan.
6. Drainage from the site is to Willow Creek, a tributary to the San Joaquin River.
7. The beneficial uses of the San Joaquin River are municipal, industrial, and agricultural supply; fresh water habitat; migration; spawning; and wildlife habitat.
8. The action to adopt waste discharge requirements for this existing facility is exempt from the provisions of the California Environmental Quality Act in accordance with Section 15301, Title 14, California Code of Regulations (CCR).

WASTE DISCHARGE REQUIREMENTS
JOHN HOVANNISIAN
NORTH FORK MILL HOUSING
MADERA COUNTY

-2-

9. The Board has notified the Discharger and interested agencies and persons of its intent to prescribe waste discharge requirements for this discharge, and provided them an opportunity for a public hearing and an opportunity to submit their written views and recommendations.
10. The Board, in a public meeting, heard and considered all comments pertaining to the discharge.

IT IS HEREBY ORDERED that John Hovannisian, in order to meet the provisions contained in Division 7 of the California Water Code and regulations adopted thereunder, shall comply with the following at North Fork Mill Housing:

A. Discharge Prohibitions:

1. Discharge of wastes to surface waters or surface water drainage courses is prohibited.
2. By-pass or overflow of untreated or partially treated waste is prohibited.
3. Discharge of waste classified as 'hazardous' or 'designated', as defined in Sections 2521(a) and 2522(a), Subchapter 15, Title 23 of CCR, is prohibited.

B. Discharge Specifications:

1. The discharge shall remain within the designated disposal area (evaporation/percolation ponds or emergency leachfield) at all times.
2. The monthly average daily dry weather discharge flow shall not exceed 8000 gallons.
3. Septic tank pumpings and other solids removed from liquid wastes shall be disposed of in a manner that is consistent with Subchapter 15 of Title 23, CCR, and approved by the Executive Officer.
4. The maximum specific electrical conductance (EC) of the discharge shall not exceed the average EC of the water supply plus 500 umhos/cm, or a maximum of 900 umhos/cm, whichever is less.
5. Public contact with wastewater shall be precluded through such means as fences, signs, and other acceptable alternatives.
6. The dissolved oxygen content in the upper zone (1.0 foot) of wastewater in the evaporation/percolation ponds shall not be less than 1.0 mg/l.

7. The discharge shall not have a pH less than 6.5 or greater than 9.0.
8. Objectionable odors originating at this facility shall not be perceivable beyond the limits of the wastewater treatment and disposal areas.
9. Ponds shall be managed to prevent breeding of mosquitos. In particular,
 - a. An erosion control program shall assure that small coves and irregularities are not created around the perimeter of the water surface.
 - b. Weeds shall be minimized through control of water depth, harvesting, or herbicides.
 - c. Dead algae, vegetation, and debris shall not accumulate on the water surface.
10. Treatment and disposal facilities shall be designed, constructed, operated, and maintained to prevent inundation or washout due to floods with a 100-year return frequency.
11. The evaporation/percolation ponds shall have sufficient capacity to accommodate allowable wastewater flow and design seasonal precipitation. Design seasonal precipitation shall be based on total annual precipitation using a return period of 100 years, distributed monthly in accordance with historical rainfall patterns. Freeboard shall never be less than two feet (measured vertically).
12. Effluent discharged to the emergency leachfield shall not surface.

C. RECEIVING WATER LIMITATIONS

The Discharger, in combination with other sources, shall not cause underlying ground water to:

1. Be degraded.
2. Contain chemicals, heavy metals, or trace elements in concentrations that adversely affect beneficial uses or exceed maximum contaminant levels specified in CCR, Title 22, Division 4, Chapter 15.
3. Exceed a most probable number of total coliform organisms of 2.2/100 ml over any seven-day period.

4. Exceed concentrations of radionuclides specified in CCR, Title 22, Division 4, Chapter 15.
5. Contain taste or odor-producing substances in concentrations that cause nuisance or adversely affect beneficial uses.
6. Contain concentrations of chemical constituents in amounts that adversely affect agricultural use.

D. Provisions:

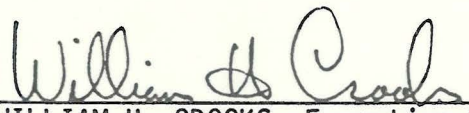
1. Neither the treatment nor the discharge shall cause a pollution or nuisance as defined by the California Water Code, Section 13050.
2. The Discharger shall use the best practicable cost-effective control technique currently available to limit mineralization and comply with salinity limits specified in the Order.
3. The Discharger shall submit technical reports as directed by the Executive Officer.
4. The Discharger shall comply with the attached Monitoring and Reporting Program No. 90-051, and any revisions thereto as ordered by the Executive Officer.
5. The Discharger shall comply with the "Standard Provisions and Reporting Requirements for Waste Discharge Requirements," dated 1 September 1985, which are, by reference, made a part of this Order.
6. The Discharger shall report promptly to the Board any material change in the character, location, or volume of the discharge from what is described herein.
7. In the event of any change in control or ownership of land or waste discharge facilities presently owned or controlled by the Discharger, the Discharger shall notify the succeeding owner or operator of the existence of this Order by letter, a copy of which shall be immediately forwarded to this office.
8. The Discharger shall provide a letter report within 60 days of the effective date of this Order identifying the names, titles, and certificate grades of persons supervising and operating the facility, and identifying who to contact in case of an emergency.

9. A copy of this Order shall be kept at the discharge facility for reference by operating personnel. Key operating personnel shall be familiar with its contents.
10. The Discharger shall submit the technical reports described in Standard Provisions A.7 and B.3 within 90 days after the effective date of this Order. The reports shall include an evaluation of the effectiveness of the emergency leachfield in complying with Discharge Prohibition A.1 and Discharge Specifications B.1. and B.12. and shall demonstrate that it is properly protected, at all times, from the nearby seasonal drainageway. The submittal shall include information on the capacity of the leachfield, historical frequency and duration of power outages, and anticipated maximum volumes of wastewater generated during a power outage. Should the Executive Officer, after review of the submittal, determine the existing facilities (or any part thereof) to be inadequate, the Discharger shall, within 30 days of having been advised of this finding, provide the Executive Officer a schedule of compliance for correcting the deficiencies.
11. The Discharger shall submit the following reports within 90 days of the effective date of this Order:
 - a. A report verifying the treatment and disposal facilities are designed, constructed, operated, and maintained to prevent inundation or washout due to floods with a 100-year return frequency pursuant to Specification B.10.
 - b. A report verifying that the ponds will have sufficient freeboard to accommodate allowable wastewater flow and design seasonal precipitation pursuant to Specification B.11.
12. The Discharger must comply with all conditions of this Order. Violations may result in enforcement action, including Regional Board or court orders requiring corrective action or imposing civil monetary liability, or in modification or revocation of this Order.
13. In addition to modification of this Order under circumstances described in Standard Provisions A.6, this Order may be modified if disposal practices change, if there is endangerment to human health or the environment, or if the Board elects to review and revise the Order on its own motion.
14. The Board will review this Order periodically and will revise requirements when necessary.

WASTE DISCHARGE REQUIREMENTS
JOHN HOVANNISIAN
NORTH FORK MILL HOUSING
MADERA COUNTY

-6-

I, WILLIAM H. CROOKS, Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Valley Region, on 23 February 1990.


WILLIAM H. CROOKS, Executive Officer

JGW:cjs:2/23/90

Attachments

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

MONITORING AND REPORTING PROGRAM NO. 90-051
FOR
JOHN HOVANNISIAN
NORTH FORK MILL HOUSING FACILITY
MADERA COUNTY

Specific sample station locations shall be established under direction of the Board's staff and a description of the stations shall be attached to this Order.

EFFLUENT MONITORING

Effluent samples shall be collected just prior to discharge to the disposal facility. Effluent samples should be representative of the volume and nature of the discharge. Time of collection of a grab sample shall be recorded. The following shall constitute the effluent monitoring program:

<u>Constituent</u>	<u>Unit</u>	<u>Type of Sample</u>	<u>Sampling Frequency</u> ^{1/}
Dissolved Oxygen ^{2/}	mg/l	Grab	Weekly
Flow	gpd	Estimate	Monthly
Specific Electrical Conductivity	umhos/cm @ 25°C	Grab	2/Year

^{1/} If results of monitoring a pollutant appear to violate effluent limitations, but monitoring frequency is not sufficient to validate violation (e.g., a monthly mean), or indicate a violation and potential upset of the treatment process (e.g., less than minimum D.O.), the frequency of sampling shall be increased to confirm the magnitude and duration of violation, if any, and aid in identification and resolution of the problem.

^{2/} Samples shall be collected from each pond opposite of the inlet and analyzed for dissolved oxygen. Samples shall be collected between 0800 and 0900 hours.

POND MONITORING

The freeboard shall be monitored on all evaporation/percolation ponds in use to the nearest half-foot. The following shall constitute the freeboard monitoring program:

<u>Constituent</u>	<u>Unit</u>	<u>Type of Sample</u>	<u>Frequency</u>
Freeboard	feet	Observation	Weekly

Permanent markers shall be placed in each pond with calibrations indicating the water level at design capacity and available operational freeboard.

In addition, the Discharger shall inspect the condition of the ponds once per week and write visual observations in a bound log book. Notations shall include observations of whether weeds are developing in the water or along the bank, and their location; whether dead algae, vegetation, scum, or debris are accumulating on the pond surface and their location; whether burrowing animals or insects are present; and the color of the pond (e.g., dark sparkling green, dull green, yellow, grey, tan, brown, etc.). A copy of the entries made in the log during each month shall be submitted along with the monitoring report the following month. Where the O&M manual indicates remedial action is necessary, the Discharger shall briefly explain in the transmittal what action has been taken or is scheduled to be taken.

WATER SUPPLY MONITORING

A sampling station shall be established where a representative sample of the water supply can be obtained. The following shall constitute the water supply monitoring program:

<u>Constituent</u>	<u>Units</u>	<u>Type of Sample</u>	<u>Frequency</u>
EC ¹	umhos/cm	Grab	2/Year

^{1/} If the source water is from more than one source, the EC shall be reported as the weighted average and include copies of supporting calculations.

EMERGENCY LEACHFIELD MONITORING

The Discharger will note any effluent flows into the emergency leachfield and estimate the amount discharged and duration of flow. Special attention shall be given to the preclusion of runoff outside the leachfield in accordance with Discharge Specifications B.1 and B.12. A summary, addressing the items above, shall be included with the monthly monitoring report.

REPORTING

Monthly monitoring results shall be submitted to the Regional Board by the 15th day of the month following month.

MONITORING AND REPORTING PROGRAM
JOHN HOVANNISIAN
NORTH FORK MILL HOUSING
MADERA COUNTY

-3-

In reporting the monitoring data, the Discharger shall arrange the data in tabular form so that the date, the constituents, and the concentrations are readily discernible. The data shall be summarized in a manner that illustrates clearly whether the Discharger complies with waste discharge requirements, including calculation of all averages, etc.

If the Discharger monitors any pollutant at the locations designated herein more frequently than is required by this Order, the results of such monitoring shall be included on the discharge monitoring report.

The Discharger may also be requested to submit an annual report to the Board with tabular and graphical summaries of the monitoring data obtained during the previous year. Any such request shall be made in writing. The report shall discuss the corrective actions taken and planned to bring the discharge into full compliance with the waste discharge requirements.

By 31 January of each year, the Discharger shall submit a written report to the Executive Officer containing the following:

- a. The names and general responsibilities of persons operating and maintaining the wastewater facilities.
- b. The names and telephone numbers of persons to contact regarding the facility for emergency and routine situations.
- c. A statement whether the current operation and maintenance manual, and contingency plan, reflect the wastewater treatment facility as currently constructed and operated, and the dates when these documents were last reviewed for adequacy.
- d. The total quantity of septage and sludge disposed of during the previous year and ultimate disposal site(s).

All reports submitted in response to this Order shall comply with the signatory requirements of Standard Provision D.6 and include the following certification:

MONITORING AND REPORTING PROGRAM
JOHN HOVANNISIAN
NORTH FORK MILL HOUSING
MADERA COUNTY

-4-

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fines and imprisonment."

Ordered by William H. Crooks
WILLIAM H. CROOKS, Executive Officer

23 February 1990
(date)

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INFORMATION SHEET

JOHN HOVANNISIAN
NORTH FORK MILL HOUSING
MADERA COUNTY

John Hovannisian owns and operates the North Fork Mill Housing Development in Madera County, approximately one mile east of North fork in Section 18, T8S, R23E, MDB&M. He purchased the housing units and property from American Forest Products about seven years ago and rents the units. (American Forest Products also sold the North Fork Mill.) The development has its own wastewater treatment system, which was the subject of complaints in 1985 and 1986 due to alleged odors and overflows. In response to our request, he submitted a Report of Waste Discharge and the appropriate fee for waste discharge requirements.

Waste is initially collected and treated in septic tanks, then conveyed to a sump tank. Effluent is pumped by float-activated electric pump from the tank directly to one of four evaporation/percolation ponds. A backup pump is available in case of an emergency. In the event of power failure, effluent flows from the sump tank to a wet well and on to an emergency leach field. The design wastewater flow is 8,000 gpd.

As a condition of the Order, the Discharger is required to demonstrate that the evaporation/percolation ponds have sufficient freeboard at all times to accommodate allowable wastewater flow and design seasonal precipitation.

The site is underlaid by residual soils (up to six feet below ground level) and about 30 feet of decomposed granite overlying parent bedrock.

Quality of ground water in the North Fork area is good (EC = 470 umhos/cm) with beneficial uses of municipal, industrial, and agricultural supply. Depth to first ground water is estimated at 30 feet. The topography drains to Willow Creek, a tributary to the San Joaquin River.

The potential problems with the site include odors generated by anaerobic waste from septic tanks being ponded in open ponds or from the various sumps. In addition, weeds within the ponds may cause nuisance conditions to develop, although no vectors were noted during inspections. Further, the emergency leachfield is within an area subject to flooding during wet weather. It is within 40 feet of a seasonal drainageway leading to Willow Creek (in conflict with the Basin Plan), and its capacity is unknown. The Discharger has recently made improvements to the facility, including enlargement of the emergency leachfield and buildup of the existing grade between the leachfield and Willow Creek. The frequency and duration of power outages, or other causes for leachfield use, are unknown.

The proposed Order specifies a minimum D.O. requirement in the ponds in order to control objectionable odors. It also contains a provision requiring that the Discharger demonstrate that the emergency leachfield can adequately accommodate flows during power outages and that it is properly protected from high flows from the nearby seasonal drainageway.

INFORMATION SHEET - Continued

JOHN HOVANNISIAN
NORTH FORK MILL HOUSING
MADERA COUNTY

-6-

Average precipitation and evaporation rates for the area are 55 and 45 inches per year, respectively.

The action to adopt waste discharge requirements for this existing facility is exempt from the provisions of the California Environmental Quality Act in accordance with Section 15301, Title 14, California Code of Regulations.

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2/23/90

